

Disclosure Of Information on Lead-Based Paint and Lead-Based Paint Hazards
(For Sale of Residential Property)

Property: _____ Seller's Name: _____

Seller Instructions: Check the box indicating the age of your property and initial. If you checked either box 1 or 3, continue to complete the *Seller's Disclosure* section below and sign this form at the bottom. If you checked box 2, sign below to complete this form.

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(Check one of the boxes to the right and initial here)

Year Dwelling Was Constructed:

- ☐ 1. was constructed prior to January 1, 1978
- ☐ 2. was constructed after January 1, 1978
- ☐ 3. uncertain as to when constructed

Lead Warning Statement - Every Purchaser of any interest in residential property on which a residential dwelling was built prior to 1978 is notified that such property may present exposure to lead from lead-based paint that may place young children at risk of developing lead poisoning. Lead poisoning in very young children may produce permanent neurological damage, including learning disabilities, reduced intelligence quotient, behavioral problems, and impaired memory. Lead poisoning also poses a particular risk to pregnant women. The Seller of any interest in residential real property is required to provide the Purchaser with any information on lead-based paint hazards from risk assessments or inspections in the Seller's possession and notify the Purchaser of any known lead-based paint hazards. A risk assessment or inspection for possible lead-based paint hazards is recommended prior to purchase.

Seller's Disclosure - Unless box 2 is checked above, each Seller is required to complete sections (a and b) by selecting an answer and then by initialing in each of these two sections (if more than one owner, all owners must select and initial)

(a) Presence of lead-based paint and/or lead-based paint hazards (CHECK ONE BOX BELOW AND INITIAL):

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Select answer and initial

☐ Known lead-based paint and/or lead-based paint hazards are present in the housing. (explain)

☐ Seller has no knowledge of lead-based paint and/or lead-based paint hazards in the housing.

(b) Records and reports available to the Seller. (CHECK ONE BOX AND INITIAL):

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Select answer and initial

☐ Seller has provided the Purchaser with all available records and reports pertaining to lead-based paint and/or lead-based paint hazards in the housing. (list documents below):

☐ Seller has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing.

Purchaser's Acknowledgement - Unless box 2 is checked above, all purchaser(s) must initial **c, d, e and f**

Purchaser(s) has read the Lead Warning Statement above.

Purchaser(s) has received copies of all information listed above.

Purchaser(s) has received the pamphlet *Protect Your Family From Lead In Your Home*.

Purchaser(s) has (check one below):

☐ Received a 10-day opportunity (or mutually agreed upon period) to conduct a risk assessment or inspection for the presence of lead-based paint and/or lead-based paint hazards.

☐ Waived the opportunity to conduct a risk assessment or inspection for the presence of lead-based paint and/or lead-based paint hazards.

Agent's Acknowledgement - Initial below

(g)

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The Listing Agent has informed the Seller of the Seller's obligation under 42 U.S.C. 4852(d), and the Seller is aware of his/her responsibility to ensure compliance.

Certification of Accuracy - The following parties have reviewed the information above and certify, to the best of their knowledge, that the information provided by the signatory is true and accurate.

Seller	Date
Purchaser	Date
Agent	Date

Seller	Date
Purchaser	Date
Agent	Date



Mobile Home on Leased Land in Manufactured Home Community Addendum



This Addendum is part of the Agreement of Sale by and between

SELLER(S): _____

BUYER(S): _____

PROPERTY: _____

The Buyer and Seller acknowledge that the property being purchased herein is located on leased land within a Manufactured Home Community, and that the Buyer wishes to retain the home in the Manufactured Home Community. The parties hereto do agree:

1. To comply with DE Code Title 25 Section 7013 the Seller shall deliver written notice to the Community Owner giving the name and address of the prospective Buyer, along with a copy of this Agreement of Sale by _____ (or within five (5) days of ratification/effective date of this Agreement if no date specified). *NOTE: Such written notice must be at least three (3) weeks prior to the scheduled sale, conveyance, or transfer of title. Per Title 25 Section 7015, written notice must be delivered either in person, or by first class mail with proof of mailing, or by certified mail, return receipt requested. With limited exceptions, the Community Owner has the right to purchase the home at a price of 10% higher than the contract price, and under the same terms at which the Seller has agreed to sell the home herein. Upon receipt of the name and address of the prospective Buyer and the agreed sale price and terms, the Community Owner must notify the Seller in writing within seven (7) business days that they are exercising their right to purchase the home or else the Community Owner's right to purchase shall expire.*
2. The Buyer shall make written application to the Community Owner by _____ (or within fifteen (15) days of ratification/effective date of this Agreement if no date specified). The Buyer is aware that most communities will charge a nonrefundable application/credit fee. At the time of the application, per Title 25, Section 7006, the Buyer is to receive a copy of the proposed rental agreement, a copy of the rules, standards, and fee schedule of the community, a copy of Title 25 Chapter 70, and a summary of such Chapter as written by the Department of Justice (hereinafter referred to as the "Buyer Package"). The Buyer shall acknowledge such delivery by signing a receipt. The Community Owner shall have 15 days from the date of receipt of the completed application package, including the applicable fee, to notify the parties if the Buyer's application is accepted or rejected.
3. The parties agree that the Buyer shall have five (5) days from Buyer's receipt of the Buyer Package to review the information to their satisfaction (hereinafter referred to as "Review Period"). Failure of the Buyer to provide written notice to the Seller that any items in the Buyer Package are unacceptable prior to the expiration of the Review Period shall be deemed as Buyer's acceptance of the items in the Buyer Package.

The parties hereto further agree that this sale shall be contingent upon:

- a) the Community Owner not exercising their right to purchase the home as outlined in Section 1 above,
- b) the Buyer's written application as outlined in Section 2 above being approved by the Community Owner within fifteen (15) days of written application package, and the Buyer's receipt of the Buyer Package, and
- c) the Buyer's acceptance of the Buyer Package.

Should (a) the Community Owner exercise their right to purchase the home, OR (b) the Buyer's written application not be accepted within 15 days from the Community Owner's receipt of the completed application package, including the applicable fee, OR (c) the Buyer provides written notice to the Seller that the Buyer

Package is unacceptable prior to the expiration of the Review Period, the Buyer or Seller may declare the Agreement of Sale null & void, in which event, all deposits being held by the Escrow Broker shall be returned to the Buyer in accordance with the terms of the Agreement of Sale provided Buyer is not otherwise in default.

Buyer(s) and Seller(s) acknowledge that they will equally split (50/50) the State of Delaware Motor Vehicle Document Fee. The Buyer(s) shall pay any applicable new title fee, lien attachment/recording fee, tax office release form fee, and all other customary fees relating to the transfer of title into the Buyer(s) name. Buyer and Seller further agree to pay any closing/settlement fee assessed them by any settlement provider and/or Community Owner.

Buyer(s) and Seller(s) agree to cooperate in having the utilities transferred into Buyer(s) name as of the date of final settlement.

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SELLER	DATE
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SELLER	DATE
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BUYER	DATE
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BUYER	DATE
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